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IN FOCUS

State and Local Role in Elections Policy: Selected Recent Developments

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States and localities have primary responsibility for administering elections in the United States, including for setting elections policy. Congress has sometimes used what the Supreme Court has described as its "override" authority to specify national standards for federal elections.

In the 2026 election cycle, the executive branch has also issued policy documents with implications for state and local elections policy. President Donald Trump signed executive orders (EOs) in March 2025 and March 2026 that include provisions related to state and local administration of elections. Federal agencies have taken steps toward implementing many of those provisions, including in agency regulations and notices of funding opportunities (NOFOs) for federal grants.

This In Focus provides an overview of provisions of recent EOs and related federal regulations and NOFOs that would require states and localities to conduct particular elections activities, either in general or in order to access federal funding. Several of the cited provisions are the subject of litigation as of this writing and have been blocked by the courts. The In Focus does not generally address litigation or offer analysis of legal questions, such as questions about underlying executive branch authorities. Congressional clients may contact CRS for information about the current status of individual provisions.

Voter Registration and Citizenship

Noncitizens are prohibited by federal law from voting in federal elections. Two federal voter registration forms that states are generally required to accept—the Federal Post Card Application (FPCA) available to voters covered by the Uniformed and Overseas Citizens Absentee Voting Act of 1986 and the broader-purpose federal mail voter registration form—require applicants to attest to their citizenship and eligibility to vote under penalty of perjury. States and localities have other safeguards against noncitizen voting in federal elections. They also choose whether to allow noncitizens to participate in their state and local elections or in the electoral process more broadly.

The 2025 EO, EO 14248, directs the entities charged with administering the federal voter registration forms to add proof-of-citizenship requirements to their forms. One provision of the EO directs the Department of Defense (now using a secondary Department of War designation) to supplement the FPCA's attestations with requirements to provide documentary proof of citizenship and proof of eligibility. Other provisions direct the Election Assistance Commission (EAC) to (1) add requirements to the more general form for applicants to provide documentary proof of citizenship and election officials to record the types of documents they present and (2) condition access to its grants on acceptance of versions of the form with any such requirements.

EO 14248 also directs the Departments of Justice (DOJ) and Homeland Security (DHS) to take steps to prevent noncitizens from participating in the administration of federal elections. A provision of the 2026 EO, EO 14399, directs DHS, through its U.S. Citizenship and Immigration Services (USCIS) and in coordination with the Social Security Administration, to compile state lists of confirmed citizens who will be over 18 by an upcoming federal election and establish procedures for states to supplement and suggest changes to the lists.

In April 2025, the EAC reported initiating consultations with chief state election officials about potential changes to its voter registration form in response to EO 14248. The consultations were reportedly paused later that month in response to a court order, and resignations and removals left the agency without commissioners as of July 2026. The EAC's staff has indicated that it does not believe it has the authority to issue regulations related to the federal mail voter registration form, develop the form, or make certain changes to accompanying state-specific instructions in the absence of commissioners. The version of the FPCA available as of this writing also does not reference requirements to document citizenship or eligibility.

DHS approved a memorandum regarding implementation of EO 14399's state citizenship lists in June 2026 and created a page for a related portal. Its Federal Emergency Management Agency (FEMA) also included elections-policy-related conditions in the NOFO for its FY2026 homeland security grant programs. According to the NOFO, to access their full funding allocations under the grant programs, states and localities would have to use USCIS's SAVE system to verify the citizenship of individuals who are on their voter rolls, work at polling places, or operate election systems. States' chief election officials would also have to take timely action to remove verified noncitizens from their voter rolls, consistent with applicable law, and bar noncitizens from working at the polls or operating election systems. FEMA announced in an October 2026 bulletin that it was rescinding these and other funding conditions in response to a court order.

Absentee and Mail Voting

Federal law requires states to allow certain military and overseas voters to vote by absentee ballot in federal elections and accept the FPCA as an absentee ballot application. All states also permit at least some other eligible voters to use absentee or mail voting, with some sending ballots to all active registered voters and others requiring absentee or mail voters to request a ballot or to request a ballot and have one of a specified list of excuses.

Deadlines for requesting and returning absentee and mail ballots vary by state. For example, some states count only ballots returned by the close of polls on Election Day, while others accept ballots postmarked by Election Day that arrive within a set number of days later. States and localities also specify other aspects of absentee and mail voting like the design of mail ballot envelopes, although the U.S. Postal Service (USPS) has long offered review of and recommendations for ballot mail designs.

President Trump's 2026 EO addresses the design and transmission of absentee and mail ballots, directing USPS to initiate rulemaking to make some of its long-standing ballot mail design recommendations mandatory, specify that it will carry ballots only from voters who have been enrolled with USPS on a state list, and establish procedures for states to supplement and suggest changes to their lists.

The 2025 EO addresses absentee and mail ballot return deadlines. It says that the EAC is to condition states' access to its grants on setting Election Day as the deadline for ballot receipt and that DOJ is to take "all necessary action to enforce 2 U.S.C. 7 and 3 U.S.C. 1 against States that violate these provisions by" counting ballots received after Election Day.

In its June 2026 decision in *Watson v. Republican National Committee*, the Supreme Court held that 2 U.S.C. §§1 and 7 and 3 U.S.C. §1 do not require ballots to be received by Election Day. The instructions the EAC provided states for accessing its FY2026 Election Security Grants also do not reference an Election Day deadline for receipt of absentee or mail ballots.

USPS finalized a rule in August 2026 that largely reflected provisions of EO 14399. Implementation of the rule was paused by federal district courts in August and September, and the Supreme Court denied the administration's request for a stay of one of the lower court's orders on September 14. USPS has reportedly confirmed that it will not enforce the rule for 2026.

Voting Systems and Post-Election Processes

The Help America Vote Act of 2002 sets some mandatory standards for the voting systems that states and localities use in federal elections, including a requirement to have at least one accessible voting system at each polling place that most jurisdictions use ballot marking devices (BMDs) to meet. It also provides for federal voting system guidelines and a program to test and certify systems for conformance to the guidelines that are voluntary under federal law but have been adopted, at least in part, by many states under their own laws or regulations. The Voluntary Voting System Guidelines (VVSG), which are developed by the EAC with assistance from its Technical Guidelines Development Committee (TGDC), address various features of voting systems, including protections against errors or interference that could affect the accuracy of the election outcomes they report.

States and localities also take other steps to ensure the accuracy of reported election outcomes. For example, election officials use a process called the canvass to account for every ballot cast in an election, including by reconciling the numbers of voters and ballots. Most jurisdictions also use one of the following types of post-election audits to check samples of paper records of votes against the election outcomes reported by their voting systems: (1) traditional audits, which review a fixed number or percentage of voting machines or districts, or (2) risk-limiting audits, which use statistical methods to provide a specified level of confidence that the outcomes reported by the voting system are the ones election officials would get with a full hand count.

The VVSG and related testing and certification are addressed in EO 14248. Some provisions of the EO say that the EAC is to (1) amend the current version of the VVSG, VVSG 2.0, to provide that voting systems should produce individual paper records voters can verify and should not use barcodes or quick-response (QR) codes to capture vote selections "except where necessary to accommodate individuals with disabilities" and, (2) if appropriate, recertify systems to the amended guidelines and rescind previous certifications. Another provision directs DHS and FEMA to "heavily prioritize compliance with [VVSG 2.0] and completion of testing through the Voting System Test Labs accreditation process" in considering funding for state and local election officials under their homeland security grant programs.

The EAC drafted an update to VVSG 2.0 that was intended to incorporate the amendments from the EO and held a meeting and three working sessions of its TGDC to discuss them. The TGDC opted against voting on the update and, as noted above, the EAC's commission was without members as of July 2026. As with the federal mail voter registration form, the agency's staff has indicated that it does not believe it has the authority to adopt new or modified VVSG in the absence of commissioners.

In addition to the citizenship-related conditions noted above, the NOFO for FEMA's FY2026 homeland security grant programs includes funding conditions related to voting systems and post-election processes. To access their full allocations under the grant programs, the NOFO indicates, states and localities would have to submit a plan for transitioning from voting systems that use barcodes or QR codes to count votes to systems with hand-marked paper ballots, including a timeline for eliminating BMDs. They would also have to conduct 5% manual audits according to DHS guidelines and ensure all jurisdictions used a DHS methodology to reconcile numbers of voters and ballots.

Election Records and Information Sharing

Congress included a requirement in the Civil Rights Act of 1960 for election officials to retain specified records for federal elections for 22 months in order to "provide a more effective protection of the right of all qualified citizens to vote without discrimination on account of race." Under the National Voter Registration Act of 1993, certain records related to voter registration have to be retained for at least two years. States may also have their own requirements that build on those timelines, such as by extending the period for retaining certain records.

The 2026 EO includes a provision that says states and localities are to preserve "all records and materials—excluding ballots cast—evidencing voter participation in any Federal election" for five years. The 2025 EO directs DOJ to enter into information-sharing agreements with states under which state officials would provide the department with information about suspected violations of state and federal election laws, with further directives to prioritize enforcement of "Federal election integrity laws" in and consider withholding funding from states that opted not to enter into such agreements or cooperate in federal investigations or prosecutions of election crimes.

In April 2025, DOJ announced the creation of a task force to implement provisions of EO 14248 in New Jersey, including provisions related to information sharing and prioritization of investigations and prosecutions of election crimes. The department has reported various enforcement activities of the task force, as well as engaging in broader efforts to request or otherwise access states' election records. For more on federal

demands for state election materials, see CRS In Focus IF13235, *Federal Investigations and Seizures of Voting Records*.

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